

shall be heard by the Discovery Referee.

3. By no later than August 31, 2026 the Parties are ordered to meet and confer pursuant to Code Civ. Proc. § 639(b) or (c) and shall submit a stipulation and proposed order listing the proposed Discovery Referee to the court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by August 31, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, emailed to dept16@contracosta.courts.ca.gov by Wednesday, September 2, 2026. The Court will select one of the proposed referees by minute order. Code Civ. Proc. § 640(b). The Discovery Referee will be requested to sign the Judicial Council ADR-110 Form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 Form.
4. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc., § 639, that conforms to this ruling, approved as to form by Defendants' Counsel, no later than five (5) days after the date of this order.
6. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
7. The Clerk of Court shall vacate Plaintiff's discovery motions calendared for August 26, September 2, and September 16, 2026. All future discovery disputes shall be referred to the Discovery Referee until further order of the Court.
8. The Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 2016.040 **in person, by telephone, or by video conference** to discuss the dispute for all eight discovery motions. Counsel shall file and serve a declaration specifying in detail how they have complied with this statutory requirement, including the date, time and duration of the meet and confer efforts no later than September 18, 2026.
9. No appearance is required at the hearing on August 26, 2026.

7. 1:30 PM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET NUMBER TWO - NOS. 44-98

RE: IMPORT MOTORS, INC.

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

See Line 6.